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** In cooperation with
Trench, Rossi e
Watanabe Advogados

International Chamber of Commerce (ICC)

International Court of Arbitration

Case No. 29534/ICA3

Elcomponics Holdings B.V.

- Claimant -

v.

Invictus GmbH

- Respondent 1 -

and

Invictus Cable GmbH

- Respondent 2 -

and

Invictus Holding IC GmbH

- Respondent 3 -

**ANSWER TO THE
REQUEST FOR JOINDER**

22 September 2025

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A. Introduction

- (1) In accordance with Article 7(4) of the 2021 ICC Rules of Arbitration ("**ICC Rules**"), Invictus Holding IC GmbH ("**Respondent 3**" or "**Invictus Holding**"), herewith submits its Answer to the Request for Joinder filed by Elcomponics Holding B.V. ("**Elcomponics**" or "**Claimant**").
- (2) Invictus Holding contests all allegations of fact and law submitted in Elcomponics' Request for Arbitration and Request for Joinder unless they are expressly confirmed in this Answer to the Request for Joinder.

B. The Parties and their Representatives

1. Claimant

- (3) Claimant is

Elcomponics Holdings B.V.
Bavincklaan 7
1183AT Amstelveen
The Netherlands

- (4) Elcomponics is a private limited company organized and existing under the laws of the Netherlands under the register number KVK 886186868. It is a 100% subsidiary of Elcomponics Sales Private Limited ("**Elcomponics Sales**"), a company organized and existing under the laws of India. Elcomponics holds a 26% share in Invictus Cable GmbH (*see below ¶ 9*).
- (5) In this arbitration, Claimant is represented by

Dr. Harish Narasappa (Independent)

and

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2. Respondents

- (6) Respondent 1 is

**Invictus GmbH
Industriegebiet 1
7011 Siegendorf
Austria**

- (7) Invictus GmbH ("**Respondent 1**" or "**Invictus**") is a Limited Liability Company (*Gesellschaft mit beschränkter Haftung* or "**GmbH**") organized and existing under the laws of Austria, registered with the Austrian Companies Register under register number FN 28666v.¹ The business purpose of Invictus includes, among others, the acquisition and management of shareholdings in companies, both in Austria and abroad. Prior to the execution of the Demerger and Acquisition Agreement (*Spaltungs- und Übernahmevertrag*) dated 27 March 2025, Invictus held a 74% shareholding in Invictus Cable. By means of that agreement, this shareholding, together with other assets, was transferred to Invictus Holding as part of the demerger (*see below ¶¶ 22 et seqq.*).²

- (8) Respondent 2 is

**Invictus Cable GmbH
Industriegebiet 1
7011 Siegendorf
Austria**

- (9) Invictus Cable GmbH ("**Respondent 2**" or "**Invictus Cable**") is also a Limited Liability Company (*Gesellschaft mit beschränkter Haftung* or "**GmbH**") organized and existing under the laws of Austria, registered with the Austrian Companies Register under register number FN 515573x.³ Invictus Cable was established on 10 July 2019 and constitutes a joint venture between Claimant and now Invictus Holding, with Claimant holding a 26% share and Invictus Holding owning the remaining 74%.⁴

- (10) Respondent 3 is

**Invictus Holding IC GmbH
Industriegebiet 1
7011 Siegendorf
Austria**

¹ Austrian Business Registry Excerpt for Invictus GmbH (**Exhibit R-003**).

² Excerpt from the Demerger and Acquisition Agreement dated 27 March 2025 (**Exhibit R-004**), Clause 10.3.

³ Austrian Business Registry Excerpt for Invictus Cable GmbH (**Exhibit R-005**).

⁴ Austrian Business Registry Excerpt for Invictus Cable GmbH (**Exhibit R-005**).

- (11) Invictus Holding (together with Respondent 1 and Respondent 2 referred to as "**Respondents**") is also a Limited Liability Company (*Gesellschaft mit beschränkter Haftung* or "**GmbH**") organized and existing under the laws of Austria, registered with the Austrian Companies Register under register number FN 650783i.⁵
- (12) Pursuant to the Demerger and Acquisition Agreement dated 27 March 2025, Invictus Holding is established to acquire and lease equity interests in other enterprises, manage such participations, and assume executive functions, particularly in the capacity of a holding company. Invictus transferred the business unit related to Invictus Cable including its share of 74% to Invictus Holding, effective as of 1 July 2024 by way of universal succession (*Gesamtrechtsnachfolge*).⁶ As a result, Invictus Holding now holds 74% of the shares in Invictus Cable and has assumed Invictus' legal position and is entitled to assert all relevant claims and defenses in this arbitration.
- (13) In this arbitration, Respondents are represented by

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⁵ Austrian Business Registry Excerpt for Invictus Cable GmbH (**Exhibit R-005**).

⁶ Excerpt from the Demerger and Acquisition Agreement dated 27 March 2025 (**Exhibit R-004**).

C. The Joinder

- (14) By Request for Joinder dated 7 August 2025, Claimant sought the inclusion of Invictus Holding as Respondent 3 in the present arbitration proceedings.⁷ By letter dated 21 August 2025, the ICC Secretariat notified Invictus Holding of Claimant's Request for Joinder and set a deadline of 30 days for the submission of an Answer to the Request for Joinder.⁸
- (15) In its Request for Joinder, Claimant presents the corporate restructuring undertaken by Respondents as a potential breach of Clause 4.6(c) of the SHA, alleging concealment and bad faith.⁹
- (16) Claimant's reliance on Clause 4.6(c) of the SHA is, however, not supported by the clause's scope: The restructuring involved a statutory demerger governed by universal succession (*Gesamtrechtsnachfolge*), which does not constitute a "*transfer*" requiring prior approval under the SHA. There was no contractual obligation to notify Claimant.
- (17) Furthermore, the relevant corporate records were publicly available and could have been reviewed by Claimant at any time prior to initiating arbitration. Claimant's decision not to consult these records – despite continuing to engage in the business relationship following its Exit Notice – reflects a lack of diligence. The absence of any such inquiry undermines the credibility of Claimant's current position.
- (18) Finally, the suggestion that the restructuring was part of a broader strategy to avoid liability is not supported by the factual record: Respondents' jurisdictional position and reliance on Austrian law are based on substantive legal reasoning, as outlined in their Answer to the Request for Arbitration. The narrative advanced by Claimant appears to shift focus away from its own contractual obligations and conduct.
- (19) With regard to the remaining arguments raised by Claimant in its Request for Joinder, Invictus Holding refers to the submissions made in the Answer to the Request for Arbitration of Respondent 1 and Respondent 2, and expressly adopts the reasoning and positions set out therein. Nonetheless, and purely out of legal caution, the core arguments set forth in the Answer to the Request for Arbitration are briefly restated below to ensure procedural clarity and completeness.

D. The Dispute

- (20) Invictus and Claimant initiated their business relationship with the aim of forming a long-term strategic partnership, as outlined in a non-binding Term Sheet dated 4 February 2022.¹⁰ This included two key transactions: (i) Elcomponics acquiring

⁷ Claimant's Request for Joinder dated 7 August 2025.

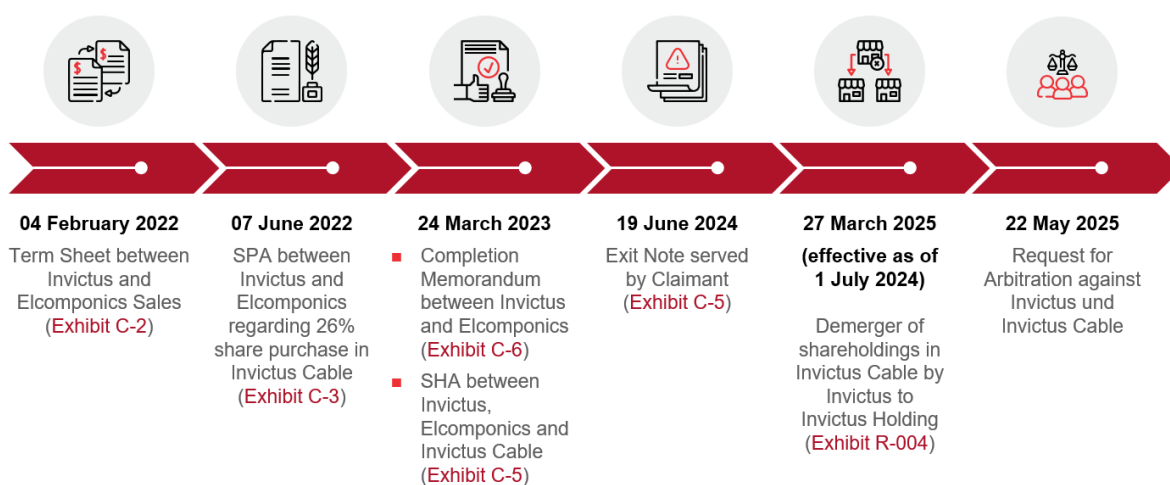
⁸ Letter of the ICC Secretariat dated 21 August 2025.

⁹ Claimant's Request for Joinder, ¶¶ 2 *et seqq.*

¹⁰ Term Sheet (**Exhibit C-2**).

26% of Invictus Cable, and (ii) establishing joint ventures in North America and India. To implement this, the parties signed a Share Sale and Transfer Deed ("**SPA**") on 7 June 2022, with the share transfer completed on 24 March 2023 via the Completion Memorandum ("**Completion Memorandum**"). On the same day, Invictus, Invictus Cable, and Claimant entered into a Shareholders' Agreement ("**SHA**"), governing rights such as voting, exit, dividends, and confidentiality.

- (21) On 19 June 2024, without prior notice, Claimant issued an Exit Notice ("**Exit Notice**") under Clause 6.1 of the SHA, seeking to exercise the Put Option under Clause 4.6(d).¹¹ Claimant's Exit Notice was based on three allegations: (i) breach of warranties, including the Completion Memorandum, (ii) omission of material information, and (iii) non-disclosure of historic liabilities exceeding EUR 250,000 – now forming the basis of its Request for Arbitration.
- (22) Through the Demerger and Acquisition Agreement dated 27 March 2025, Invictus transferred the Invictus Cable business unit, including its 74% shareholding, to Invictus Holding via universal succession, effective 1 July 2024.¹² Accordingly, Invictus Holding has assumed Invictus' legal position and is entitled to assert all relevant claims and defenses in this arbitration. As outlined in the Answer to the Request for Arbitration, Invictus Holding likewise rejects Claimant's allegations as unfounded and based on a mischaracterization of the contractual framework.
- (23) As will be shown below, Respondents fully complied with their obligations, both under the SPA and the SHA (if one were to assume that Claimant's allegations relate to the SHA – *quod non*). In any case, Claimant's purported termination of the SHA and its exercise of the Put Option are both invalid and Claimant's claims must be dismissed (*see* ¶¶ 31 *et seqq.*). Before refuting Claimant's baseless claims, Invictus Holding raises an objection on jurisdiction (*see* ¶¶ 24 *et seqq.*).



¹¹ Exit Notice served by Claimant (Exhibit C-8), ¶ 4.

¹² Excerpt from the Demerger and Acquisition Agreement dated 27 March 2025 (Exhibit R-004).

E. Objection on Jurisdiction

- (24) Invictus Holding submits that the sole arbitrator lacks jurisdiction, as Claimant's claims arise solely under the SPA and Completion Memorandum – not the SHA. These agreements contain distinct arbitration clauses designating the Vienna International Arbitral Centre ("**VIAC**") – not the ICC – as the competent forum (*see* ¶ 27).¹³ Even if parts of the claims were deemed to fall under the SHA, Clause 11.2 of the SPA and Clause 6.3 of the Completion Memorandum would prevail (*see* ¶¶ 28 *et seq.*).

1. The SPA Governs Claimant's Claims

- (25) Claimant relies on Clause 10.2 of the SHA to establish jurisdiction of a sole arbitrator under the ICC Rules ("**ICC Sole Arbitrator**"). However, Claimant's claims are not shareholder disputes governed by the SHA. They are solely allegations of contractual warranty breaches under the SPA. This applies particularly to Claimant's core allegation related to the accuracy and completeness of the provisional financial overview of 23 March 2023 ("**March 2023 Provisional Financial Overview**") and the alleged omission of certain tax and shareholder loan liabilities therefrom. These allegations are expressly addressed and governed by the warranty regime set forth in Clause 4.1(a) and schedule 3 of the SPA and are subject to the exclusive dispute resolution provision of Clause 11.2 thereof.¹⁴
- (26) The allegedly breached warranty is expressly set out in Clause 4.1(a) of the SPA and governed by Austrian law under Section 880a of the Austrian Civil Code (*Allgemeines Bürgerliches Gesetzbuch*; "**ABGB**"). The SPA provides a detailed warranty framework – including limitation periods, liability exclusions, and disclosure obligations – outlined in schedule 3. These provisions reflect the parties' intent to allocate pre-completion risk and are entirely absent from the SHA.
- (27) Claimant overlooks that the SPA (and Completion Memorandum) and the SHA differ materially in scope, forum, and parties. The SPA was concluded solely between Claimant and Invictus, while the SHA includes Invictus Cable and governs post-completion shareholder matters. Even the Put Option under Clause 4.6(d) of the SHA, which Claimant invokes, is contingent on a breach under the SPA. Determining such a breach falls exclusively within the exclusive jurisdiction of a sole arbitrator appointed under the VIAC Rules ("**VIAC Sole Arbitrator**"). As such, the ICC Sole Arbitrator – as referenced in Clause 10.2 of the SHA – lacks jurisdiction.

¹³ Share Sale & Transfer Deed (SPA) dated 7 June 2022 (**Exhibit C-3**), Clause 11.2; Completion Memorandum with Annex 2 (March 23 Balance Sheet) (**Exhibit C-6**), Clause 6.3.

¹⁴ Share Sale & Transfer Deed (SPA) dated 7 June 2022 (**Exhibit C-3**).

2. *In Eventu*, the SPA Prevails Regardless of Any SHA Relevance

- (28) Even if Claimant's claims were partly based on the SHA, Clause 11.2 of the SPA and Clause 6.3 of the Completion Memorandum shall govern the present dispute.
- (29) Established case law confirms that where overlapping agreements exist, the arbitration clause in the contract at the commercial core prevails.¹⁵ Here, the SPA and Completion Memorandum form the legal and commercial nucleus of the parties' joint venture arrangement. Without these contracts, any Put Option lacks both operative effect and enforceability. Accordingly, the SPA is not ancillary but central to the dispute at hand.
- (30) Accordingly, Invictus Holding requests the ICC Sole Arbitrator to decline jurisdiction over Claimant's claims.

F. Claimant's Purported Termination of the SHA and its Exercise of the Put Option are Invalid

- (31) In the following, Invictus Holding will demonstrate that no contractual obligations were breached – neither under the SPA nor, even assuming Claimant's reliance on the SHA, under the SHA. Accordingly, Claimant's termination and exercise of the Put Option lack legal basis and must be dismissed in full.

1. Invictus Did Not Breach the Completion Memorandum

- (32) Claimant alleges that Invictus misrepresented the March 2023 Provisional Financial Overview in the Completion Memorandum by omitting a shareholder loan receivable.¹⁶ This is said to breach the fundamental warranty in Clause 3 of the Completion Memorandum. On that basis, Claimant purports to justify termination of the SHA under Clause 6.1 of the SHA and the exercise of the Put Option. However, this claim is both legally and factually unfounded.
- (33) The SPA, specifically Clause 2 of schedule 3, disclosed the intra-group loan structure, which Claimant accepted.¹⁷ The loan remained materially unchanged as of 23 March 2023, and the financial overview simply reflected an offset against Invictus Cable's profit – an accounting treatment consistent with the parties' understanding and without impact on the actual financial position of the parties involved. Moreover, Clause 2.2 of the Completion Memorandum excludes Claimant from any entitlement to pre-Completion profits. The overview served its

¹⁵ UBS AG & UBS Securities LLC v. HSH Nordbank AG [2009] EWCA Civ 585 (18 June 2009) (**Exhibit RL-002**).

¹⁶ Elcomponics' Request for Arbitration, Section 2.5(a)(iii), ¶ 12.

¹⁷ Share Sale & Transfer Deed (SPA) dated 7 June 2022 (**Exhibit C-3**), Clause 2 of the schedule 3, ¶ 14.

intended purpose of providing a reliable snapshot of Invictus Cable's financial position at Completion.

- (34) No new shareholder loan was granted post-Completion, and no corporate resolutions support Claimant's allegation. The attempt to reframe a disclosed accounting treatment as concealment is unsupported and misconstrues the contractual framework.

2. Invictus Disclosed All Financial Liabilities

- (35) Claimant alleges that a corporate income tax liability of EUR 428,182.09 was omitted from the March 2023 Balance Sheet, triggering the Put Option under Clause 4.6(d)(ii) of the SHA.¹⁸ This claim is factually incorrect.
- (36) Claimant was aware of the Austrian group tax arrangement, which allowed intra-group offsets of profits and liabilities. Invictus Cable's tax obligations were lawfully offset against Invictus' losses under Austrian law, and the resulting internal compensation was properly reflected in the financials. The March 2023 Provisional Financial Overview applied standard accounting treatment consistent with prior years. No outstanding tax liability existed, and the offset was settled within the group.
- (37) Claimant's assertion of concealment misrepresents a disclosed and lawful accounting position. The tax treatment was discussed during negotiations and documented. There is no hidden liability or breach that would justify exercising the Put Option.

3. Invictus Cable Provided Claimant with Financial Statements on a Regular Basis

- (38) Claimant's allegation of withholding material financial information¹⁹ is unfounded. Invictus Cable consistently provided comprehensive financial and operational data, in full compliance with Clause 4.4 of the SHA. Monthly Management Information System ("MIS") reports included detailed financial and operational metrics.²⁰ Furthermore, Claimant's representative, Mr. Sandeep Rajpal, regularly attended management meetings and received minutes thereafter.²¹

¹⁸ Elcomponics' Request for Arbitration, Section 3.1, ¶ 16.

¹⁹ Elcomponics' Request for Arbitration, Section 3.1(c), ¶ 17.

²⁰ See, *inter alia*, MIS Report December 2023 (**Exhibit R-008**); MIS Report April 2024 (**Exhibit R-009**); MIS Report October 2024 (**Exhibit R-010**); MIS Report March 2025 (**Exhibit R-011**).

²¹ See e.g. Consolidated invitations to the monthly Management Meetings (**Exhibit R-012**); Consolidated emails following-up on the monthly Management Meetings (**Exhibit R-013**).

- (39) These disclosures not only fulfilled but exceeded the SHA's reporting obligations. Claimant's narrative omits these facts and misrepresents a transparent and documented reporting process.

4. Rent and Cost Increases Were Lawful and Disclosed

- (40) Claimant's allegation of "*unauthorized related-party enrichment*"²² is unfounded. Rent and operating cost adjustments were neither concealed nor discretionary – they followed contractual mechanisms, including Austrian Consumer Price Index (*Verbraucherpreisindex*)-linked rent increases and market-driven energy costs, both documented and accessible to Claimant. Presenting these standard adjustments as misconduct or breaches of Clauses 4.2(k), (n), (o), or (q) of the SHA distorts the facts. No Reserved Matter was triggered, no new agreements were made, and all actions were consistent with the agreed framework. This allegation is merely a tactical attempt to justify the Put Option.

5. Failure to Establish an Advisory Board was Solely Claimant's Fault

- (41) Claimant's allegation regarding the non-establishment of the Advisory Board lacks legal merit. Clause 4.1 of the SHA imposes a joint obligation on both shareholders, yet Claimant failed to nominate candidates or engage in the process. Despite Invictus' repeated efforts, no names were proposed, and no action was taken following discussions in August 2023.
- (42) Claimant's attempt to invoke this as a termination-trigger under Clause 6.1(a) is unsupported. Moreover, under Austrian corporate law, shareholders already possess extensive control rights, making a supervisory board functionally redundant. The absence of the Advisory Board does not constitute a material breach.

G. Claimant's Calculation of the Put Option Price is Inconclusive

- (43) Claimant's claim for specific performance of the Put Option, allegedly yielding a purchase price of EUR 4.1 million, is entirely unsubstantiated. No verifiable financial data or methodology has been provided to support the claimed enterprise value or the application of Clause 4.6(d) of the SHA.
- (44) Without EBITDA figures, documentation of adjustments, or a traceable valuation, the claim remains speculative. Specific performance requires a clear and evidence-based calculation – Claimant has failed to meet this standard. The request is therefore procedurally and substantively inconclusive.

²² Elcomponics' Request for Arbitration, Section 3.1(d), ¶¶ 17 *et seq.*

H. Procedural Aspects

1. Arbitration Agreement

- (45) As elaborated above, Invictus Holding submits that the present dispute falls outside the scope of Clause 10.2 of the SHA. The core subject matter of this arbitration concerns alleged breaches of representations and warranties governed exclusively by the SPA and the Completion Memorandum (*see ¶¶ 25 et seqq.*). Therefore, these claims are subject to Clause 11.2 of the SPA, and Clause 6.3 of the Completion Memorandum.
- (46) Accordingly, Invictus Holding submits that the ICC Sole Arbitrator lacks jurisdiction over Claimant's claims.

2. Arbitral Tribunal and Language of the Arbitration

- (47) Clause 10.2 of the SHA, Clause 11.2 of the SPA, and Clause 6.3 of the Completion Memorandum each provide that "*the number of arbitrators shall be 1 (one). The language of arbitration shall be English.*"²³ Accordingly, all three arbitration clauses consistently provide for a sole arbitrator. Given the uniform reference to a sole arbitration in these clauses, the Secretariat by letter dated 12 September 2025 informed the Parties, that the Court appointed Friederike Schäfer as a sole arbitrator upon the German National Committee's proposal.²⁴ Moreover, all three arbitration clauses unequivocally also designate English as the language of arbitration.
- (48) For avoidance of any doubt, however, these statements shall in no way be construed as submission to the jurisdiction of the ICC Sole Arbitrator.

3. Governing Rules and Applicable Law

- (49) Clause 10.2. of the SHA provides that "*this Agreement shall be governed by and construed in accordance with English Law, subject to mandatory provisions of Austrian and Indian laws.*"²⁵ In contrast, Clause 11.2 of the SPA and Clause 6.3 of the Completion Agreement stipulate that "*this Deed and the rights and obligations arising out of or in connection with this Deed shall be governed by and construed in accordance with Austrian law.*"

²³ Shareholders' Agreement dated 24 March 2023 (**Exhibit C-5**), Clause 10.2; Share Sale & Transfer Deed (SPA) dated 7 June 2022 (**Exhibit C-3**), Clause 11.2; Completion Memorandum with Annex 2 (March 23 Balance Sheet) (**Exhibit C-6**), Clause 6.3.

²⁴ See the Secretariat's letter to the Parties dated 12 September 2025.

²⁵ Shareholders' Agreement dated 24 March 2023 (**Exhibit C-5**), Clause 10.1.

- (50) As submitted by Invictus Holding, Clause 11.2 of the SPA and Clause 6.3 of the Completion Memorandum are the provisions applicable to the present dispute.

I. Relief Sought

- (51) In view of the above, Invictus Holding requests that the ICC Sole Arbitrator shall issue the following

AWARD:

1. Decline jurisdiction over Claimant's claims;
2. *In the alternative*, dismiss Claimant's claims in their entirety;
3. Order Claimant to reimburse Respondents for all their all costs of this arbitration, including but not limited to any administrative fees and expenses, arbitrators' fees and expenses, legal, experts' or other costs, fees and expenses as well as internal costs, plus interest thereon from the day following the service of the Award until the day of payment.

Vienna, 22 September 2025



Baker McKenzie Rechtsanwälte LLP & Co KG
on behalf of *Invictus Holding IC GmbH*



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